

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: October 28, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

ORDER DENYING JOINT MOTION TO EXTEND DEADLINES AND SETTING STATUS CONFERENCE

On October 24, 2024, the parties filed a joint motion to extend deadlines. The motion seeks to extend the date for completion of discovery from June 6, 2025 – a date that already provided more than double the 150 days contemplated by the Commission’s rules (see 46 C.F.R. § 502.141(g) – to September 4, 2025. It is not clear from the motion why this additional time is needed. The parties represent that they have already served initial requests for production, the initial responses and objections to those requests, and have no outstanding disputes. Joint Mot. to Extend Deadlines [Dkt. 25], ¶ 4. So far they seem to be on schedule.

In support of the motion, the parties point to the “large volume of documents (many hundreds of thousands) to be reviewed for relevance, attorney-client privilege, and confidentiality” and that they “anticipate requesting further custodians.” Id. ¶ 5. They further rely on the “(i) complexity of the matter; (ii) the need to include bankruptcy counsel in making decisions, and other challenges presented by Complainant’s bankruptcy status; and (iii) ongoing discussions relating to interrogatories and requests for documents.” Id. ¶ 6. As to the last, if there are no outstanding discovery disputes, as the parties represent, then there seems to be no reason why their “ongoing discussions” would impact the schedule. As to the preceding factors, the volume of potential discovery was described in the parties’ July 19, 2024 Joint Status Report [Dkt. 22], and I took that into account when I gave them the schedule they asked for. See Aug. 16, 2024 Scheduling Order [Dkt. 23]. They have not explained why they cannot complete document discovery in the remaining seven weeks in the current schedule, which provides for “substantial completion of productions of documents and ESI in response to initial RFPs by December 13, 2024.” Id. If some discovery has made the matter more complex than originally anticipated, or if Complainant has retrieved more than the 8.35 terabytes, or Respondent more

than the 2 terabytes of ESI described in the Joint Status Report, for example, the motion does not provide any explanation. Without such details, I cannot conclude there is good cause to grant a three-month extension. The Joint Motion to Extend Deadlines is therefore **DENIED**.

I am sensitive to the need to create a complete record, and I note the parties appear to be advancing discovery cooperatively. To ensure discovery is proceeding appropriately and to prevent delay, the parties are hereby **ORDERED** to appear via videoconference for a status conference on **December 16, 2024, at 2:00 PM EST** (a link will be distributed). Counsel must be prepared to discuss in detail the status of discovery, the volume of ESI reviewed and exchanged, the methods of review employed, the deposition schedule, any delays encountered, unresolved disputes, the need for additional time, and any other matters impacting the schedule. If appropriate, I will modify the scheduling order at that time.

If counsel are unavailable, they should confer and jointly propose alternate dates or times for the status conference via email to judges@fmc.gov.

ALEX
CHINTELLA

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Alex M. Chintella
Administrative Law Judge